

1.

CASE #	CASE NAME	HEARING NAME
CVRI2405844	ZAVALA-RIOS VS RODRIGUEZ	MOTION TO BE RELIEVED AS COUNSEL FOR RICARDO RODRIGUEZ

Tentative Ruling: Defendants' counsel's Motion to be Relieved is granted.

Order to Show Cause is set for 9/14/26 as to why Answers Should not be Stricken for Failure to Retain Counsel as to Defendants AMERIPRIDE SERVICES, LLC AN AFFILIATE OF VESTIS SERVICES, LLC and ARAMARK SERVICES, INC.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502515	SOLIS VS KENNON	MOTION TO SET ASIDE DEFAULT

Tentative Ruling: Defendant Interstate Automobile Network, Inc.'s Motion to Set Aside the Clerk's Entry of Default is granted. Defendant must file a separate verified answer within 20 days of this ruling.

The Cross-Complaint is NOT deemed served nunc pro tunc. Defendant is ordered to serve the Cross-Complaint on Plaintiff Solis by legally authorized personal or mail service. Plaintiff Solis's time to respond to the Cross-Complaint shall run strictly from the date of proper service (C.C.P. Section 473(b)).

Counsel William P. Gemmill, Esq. is ordered to pay Plaintiff Solis reasonable compensatory costs associated with opposing this motion in the amount of \$250.00 within thirty (30) days of this Order. CCP §473(c).

CCP §473(b) provides that the court may relieve a party from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect within six months after judgment, dismissal, order, or proceedings has been taken. In the absence of an attorney affidavit of fault, the burden is on the moving party to show that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.

C.C.P. section 473(b) also provides discretionary relief, stating: "[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." In ruling on motions brought under the discretionary provision of section 473(b), the general policy favors granting relief and a trial on the merits. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.) When relief is sought promptly and there is no prejudice to the other side, even a weak showing will suffice. (*Ibid.*)

The term "excusable neglect" is interpreted liberally. (*Iott v. Franklin* (1988) 206 Cal.App.3d 521.) "Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief

from default.” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227.) For a motion for relief under the excusable-neglect provisions of §473(b), the motion must be made “within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (C.C.P. §473(b).) A motion is “made” when it is filed and served. (C.C.P. §1005.5.) Under the mandatory provision, relief must be granted even where the default resulted from inexcusable neglect by the attorney, provided the error was the fault of the attorney rather than the client (*as held in Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 57.

Defendant Interstate Automobile Network, Inc. formally filed the instant Motion to Set Aside Default, supported by the sworn Declaration of William P. Gemmill. In his sworn declaration, he attests to several specific administrative errors and oversight omissions that directly resulted in the entry of his client's default:

- On January 6, 2026, Mr. Gemmill submitted verified answers for three other defendants, alongside a verified answer and compulsory cross-complaint for Defendant Interstate. He erroneously assumed that all five pleadings had been successfully filed by the clerk at the same time.
- On February 4, 2026, the court clerk rejected Interstate's answer and cross-complaint. Mr. Gemmill admitted that he completely overlooked this rejection notice when preparing for the court's March 24, 2026 Case Management Conference.
- He did not discover the clerk's February rejection notice until he was preparing for a subsequent court hearing and case management conference on May 20, 2026.
- Upon discovering the rejection, Mr. Gemmill immediately prepared and submitted a revised answer and cross-complaint on May 19, 2026. However, he neglected to inspect the court's online docket to see if a default had already been entered against Interstate.
- It was not until June 3, 2026—when the clerk returned his May 19 filings—that Mr. Gemmill learned that the plaintiff had successfully entered a default against Interstate on February 4, 2026 (the very same day the clerk initially rejected his original answer).

Mr. Gemmill certifies under penalty of perjury that he overlooked the clerk's rejection when managing the January filings and explicitly declares that the resulting default was entirely and solely his fault, rather than the fault of his client.

Plaintiff argues that Defendant failed to carry its burden of proof because the motion did not attach primary physical evidence of the January 6, 2026 submission, such as e-filing confirmations, the clerk's actual rejection notices, or a declaration from the electronic filing service provider. This argument is unavailing. Under C.C.P. Section 473(b), an attorney's sworn declaration attesting to their mistake, inadvertence, or neglect is fully competent and sufficient evidence to establish attorney fault (pursuant to C.C.P. Section 473(b)). Attorney William P. Gemmill, Esq., acting as an officer of the court, executed a declaration under penalty of perjury taking explicit, personal responsibility for preparing the answer on January 6, 2026, and mistakenly overlooking the clerk's subsequent rejection of that specific pleading. The statutory prerequisites do not mandate the

inclusion of specific electronic transmission logs where the court credits the attorney's sworn admission of fault. *Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 442-443.

Plaintiff contends that counsel's failure to verify the court docket from January until May 2026, combined with the submission of a second unfileable answer in May without verifying the default status, constitutes repeated, systemic office neglect rather than an excusable oversight. While Plaintiff's characterization of counsel's performance as inexcusable neglect is factually accurate, the distinction between "excusable" and "inexcusable" neglect is irrelevant under the mandatory provision of C.C.P. Section 473(b). Regardless of how unreasonable or inexcusable the attorney's neglect was, "so long as the attorney affidavit of fault shows the error was the fault of the attorney rather than the client." (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 57.)

Plaintiff argues that she should not be prejudiced by a second default because she already cooperated in late 2025 by stipulating to set aside Interstate Auto's first default, and Defendant thereafter missed its clear, court-ordered deadline. While the Court appreciates Plaintiff's prior cooperation and agrees that deadlines must be taken seriously, a party's statutory right to relief from default under C.C.P. Section 473(b) is not waived or exhausted by a prior stipulation.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505680	CORIA VS RIVERSIDE INN	MOTION TO STRIKE

CASE #	CASE NAME	HEARING NAME
CVRI2505680	CORIA VS RIVERSIDE INN	DEMURRER

Tentative Ruling: Defendants Riverside Inn and Value Hotels Corp.'s Demurrer as to the First, Third, and Fourth Causes of Action is sustained with leave to amend within 20 days.

Defendants' Motion to Strike the punitive damages allegations and prayer, and the request for attorneys' fees are granted.

A demurrer tests the legal sufficiency of the complaint. The court accepts as true all material facts properly pleaded, but not contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The complaint is given a reasonable interpretation and read as a whole. (*Id.*) The question is whether the pleading states facts sufficient to constitute a cause of action. (*Id.*; *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.) Leave to amend should be granted if there is a reasonable possibility that any defect can be cured; the burden of demonstrating such a possibility rests on the plaintiff. (*Blank, supra*, 39 Cal.3d at 318; *Aubry, supra*, 2 Cal.4th at 967.)

First Cause of Action – Battery